

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 25-28  
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COOL LIVING LLC,  
  
COMPLAINANT,

v.

ALPI U.S.A., INC.,  
  
ALPI AIR & SEA A/S,  
  
RESPONDENTS.

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**JOINT MOTION FOR EXTENSION OF TIME**

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Complainant, Cool Living LLC (“Cool Living”), and Respondents, ALPI U.S.A., Inc. and ALPI Air & Sea A/S (“ALPI”) (each a “Party” and collectively the “Parties”), through their undersigned counsel, respectfully submit this Joint Motion for Extension of Time and proposed revised procedural schedule (“Joint Motion”).

The Initial Order in this matter explains that “[p]arties may agree to additional limitations, however, requests to extend established deadlines will be reviewed for good cause even if parties agree to the extension.” Initial Order, Dkt. 7 (December 9, 2025). Section 46 C.F.R. § 502.102(a) explains that “[m]otions filed less than seven (7) days before the scheduled filing date may be considered where reasonable grounds are found for the failure to meet this requirement.”

Good cause exists for a modest extension of the discovery schedule. The Parties are continuing to work diligently on this matter and respectfully request a brief extension limited solely to the first deadline for the service of written discovery requests, so that those efforts may continue before initiating discovery and incurring significant discovery-related costs. The Parties do not seek an extension of any other deadlines set forth in the Scheduling Order and do not intend for this limited extension to affect the remaining deadlines. Although the Parties endeavored to comply with the February 28, 2026 deadline established by the Presiding Officer's January 30, 2026 Scheduling Order, they have worked collaboratively to determine that certain outstanding issues remain that would benefit from resolution prior to the commencement of full discovery efforts.

Based on the good cause shown above, the Parties respectfully request the extension and resetting of the deadlines as follows:

| <b>Event</b>                                                                                                   | <b>Current Date</b> | <b>Proposed Date</b> |
|----------------------------------------------------------------------------------------------------------------|---------------------|----------------------|
| Service of Written Discovery Requests                                                                          | February 28, 2026   | March 11, 2026       |
| Complete Initial Document Production                                                                           | April 30, 2026      | No Change            |
| Completion of All Discovery                                                                                    | June 13, 2026       | No Change            |
| Complainant's brief, proposed findings of fact, and appendix                                                   | July 13, 2026       | No Change            |
| Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix | August 12, 2026     | No Change            |
| Complainant's reply brief and responses to proposed findings of fact                                           | September 2, 2026   | No Change            |

The Parties pray for an Order extending the current discovery deadlines in this case as outlined above.

Respectfully Submitted,

Dated: February 27, 2026

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